

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
45 & 46 Vict. c. 73.	The Ancient Monuments Protection Act, 1882.	The whole Act except so far as it relates to Ireland and except the Schedule.
63 & 64 Vict. c. 34.	The Ancient Monuments Protection Act, 1900.	The whole Act except so far as it relates to Ireland.
10 Edw. 7 & 1 Geo. 5. c. 3.	The Ancient Monuments Protection Act, 1910.	The whole Act except so far as it relates to Ireland.

CHAPTER 33.

An Act to promote Temperance in Scotland by conferring on the electors in prescribed areas control over the grant and renewal of certificates; by securing a later hour of opening for licensed premises; by amending the law relating to clubs; and by other provisions incidental thereto.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act shall, except as otherwise in this Act provided, come into operation on the expiration of eight years from the first day of June nineteen hundred and twelve.

Date of Act
coming into
operation.

2.—(1) If, in the manner hereinafter provided, a requisition demanding a poll under this Act in any area is found by the local authority to have been duly signed, the local authority shall cause a poll of the electors in such area (hereinafter called "a poll") to be taken in accordance with the provisions of this Act.

Poll of electors
on resolutions
submitted.

(2) The questions to be submitted to the electors at a poll shall be the adoption in and for such area of (a) a no-change resolution, or (b) a limiting resolution, or (c) a no-licence resolution.

(3) On a poll in any area—

- (a) if fifty-five per cent. at least of the votes recorded are in favour of a no-licence resolution, and not less than thirty-five per cent. of the electors for such area on the register have voted in favour thereof, such resolution shall be deemed to be carried; or if
- (b) a majority of the votes recorded are in favour of a limiting resolution, and not less than thirty-five per cent. of the electors for such area on the register have voted in favour thereof, such resolution shall be deemed to be carried; or if
- (c) a majority of the votes recorded are in favour of a no-change resolution, or if no other resolution is carried, a no-change resolution shall be deemed to be carried; and

any such resolution so carried shall come into force on the twenty-eighth day of May immediately following the taking of the poll.

(4) An elector shall not be entitled to vote for more than one of the resolutions submitted at the poll, but, if a no-licence resolution be not carried, the votes recorded in favour of such resolution shall be added to those recorded in favour of the limiting resolution, and shall be deemed to have been recorded in favour thereof.

(5) Any such resolution if carried shall remain in force until the resolution is repealed or superseded as hereinafter provided.

Effect of
resolutions, if
carried.

3.—(1) For the period during which a no-licence resolution remains in force in any area, no certificate shall be granted therein; except that the licensing court may, on being satisfied that under the special circumstances of the case any certificate is reasonably required notwithstanding the fact that a no-licence resolution is in force in the area, grant one or more certificates for an inn and hotel or for premises structurally adapted for use and bonâ fide used or to be used as a restaurant: Provided that any certificate so granted shall be deemed to include the conditions that there shall be on the certificated premises no drinking-bar or other part of the premises mainly or exclusively used for the sale or consumption of exciseable liquors, and that such liquors shall be sold therein by retail only and to none but persons lodging or residing in the inn and hotel, or persons taking a meal on the premises of the restaurant or (if the court so sanction) of the inn and hotel, for consumption with such meal; and provided further that it shall be a condition of the renewal of any such certificate in any year after the year in which it is first granted under the provisions of this section that the applicant shall satisfy the court by production of an excise licence or otherwise that he is entitled to a reduction of duty in terms of section forty-five of the Finance (1909-10) Act, 1910.

(2) For the period during which a limiting resolution remains in force in any area, without prejudice to the other powers or discretion of the licensing court, it shall not be lawful for the licensing court to grant a greater number of certificates in such area than the nearest integral number which shall not exceed seventy-five per cent. of the number of certificates in force at the date at which such resolution is carried.

(3) If a limiting resolution is carried, the licensing court shall, before the first day of February following the poll, meet for the purpose of preparing a scheme for carrying out in the area the requirements of the resolution, which scheme shall give the particulars of any premises the certificates of which the court propose to withdraw, and every scheme prepared as aforesaid shall forthwith be advertised by the clerk to the licensing court in a newspaper circulating in the area and shall be open to the inspection of the public for three weeks before the first day of March following the poll at a place to be stated in the advertisement.

(4) Before the general half-yearly meeting of the licensing court held in April, the licensing court shall meet for the purpose of hearing the parties interested in the said scheme and adjusting the said scheme for consideration at the said April meeting, and the licensing court shall, at that meeting or at any adjournment thereof, take the scheme so adjusted into consideration, and, after hearing parties interested therein, so far as not already heard, and, if they modify the scheme, after hearing parties interested in any modification, shall decide upon the certificates to be withdrawn.

(5) The decision of the licensing court in refusing or reducing certificates in pursuance of a no-licence resolution or of a limiting resolution shall not be subject to appeal.

(6) It shall not be competent for a member of a licensing court to sign a requisition for a poll under this Act.

4.—(1) Where a poll has been taken, and such poll, or the declared result thereof has not been declared void in terms of this Act, a further poll shall not be taken before the month of November in the third year from the date of the last poll. Resolutions at further polls.

(2) Such further poll may be taken—

(a) if a no-change resolution is in force, or a limiting resolution or no-licence resolution has been repealed, for the following options, that is to say, for a further no-change resolution, or for a no-licence resolution, or for a limiting resolution ;

(b) if a limiting resolution is in force, for the following options, that is to say, for the repeal or continuance of any such resolution, or for a further limiting resolution, or for a no-licence resolution, provided that, if the repeal of any such resolution is not carried, the votes in favour of such repeal shall be added to those recorded in favour of a continuance

resolution and shall be deemed to have been recorded in favour thereof; and

(c) if a no-licence resolution is in force, for repealing the same.

(3) The provisions of section two of this Act, except as regards the questions to be submitted to the electors, shall apply to such further polls, provided that where a further poll is taken in any area where a limiting resolution or a no-licence resolution is in force and the majority of the votes recorded is not in favour of the repeal of such resolution, such repeal shall not be carried.

Supplemental
provisions.

5.—(1) The requisition for a poll shall be in the form set out in Schedule I. to this Act, and shall be signed by not less than one-tenth of the electors in the area; and the signatures to the said requisition shall be appended thereto with the full addresses of the signatories, on papers which shall be issued on demand of any elector by the clerk to the local authority, not earlier than the fifteenth day of August immediately preceding the month in which the requisition is to be lodged; and such papers shall bear on each sheet the date of issue. The requisition shall be lodged during the month of September in any year with the clerk to the local authority, who shall thereupon insert, in not less than two newspapers circulating in the area, a notice of the receipt of such requisition, and shall allow inspection of the requisition by any elector, but, after the requisition has been so lodged, no signatures thereto may be withdrawn.

(2) On the day on which a poll under this Act is taken in any area, all the certificated premises in such area in which exciseable liquors are sold by retail shall remain closed for the sale of such liquors until after the hour fixed for the close of the poll, but nothing in this subsection contained shall prohibit the sale of such liquors to lodgers or to bonâ fide travellers taking meals on the premises in any room usually set apart for that purpose, for consumption therein at the meal, or the sale, distribution, or delivery of exciseable liquors under the conditions prescribed by section sixty-three of the Licensing (Scotland) Act, 1903.

3 Edw. 7. c. 25.

(3) A poll shall be taken on any day not being a market day which the local authority may fix in the month either of November or of December immediately following the lodging of the requisition: Provided that in a county a poll shall be taken only in the year of a triennial election of county councillors, except in the case of a poll held in the year in which a resolution under this Act is first competent; and provided further that, if a poll, or the declared result thereof, is by a judgment of the Court of Session declared void, the Court may, if they think fit, order the local authority to cause a new poll to be taken, or one-tenth of the electors in the area may, by requisition found by the local authority to have been duly signed within two months of the date of the judgment, demand a new

poll, and the local authority shall thereupon forthwith cause such poll to be taken.

(4) Polls under this Act shall be by ballot, and the Secretary for Scotland shall make rules for regulating the procedure with respect to requisitions and the taking of polls, and providing for the re-counting or scrutiny of the votes recorded on any poll when a demand is made therefor, and, without prejudice to the generality of the power hereby conferred, may by those rules apply for the purpose with any necessary modifications any enactments relating to Parliamentary or local government elections and to the prevention of corrupt and illegal practices thereat (including the penal provisions thereof):

Provided that, where a poll is taken for the first time in any area, the ballot papers shall be in the form contained in Schedule II. to this Act, with any modifications thereof to meet the circumstances of the case which may be sanctioned by the Secretary for Scotland, and, in case of polls other than the first poll or in cases where there are no certificates or not more than one certificate in force in the area, in such forms as may be prescribed by the Secretary for Scotland, who shall fix a maximum scale for the expenses of a poll, and any expenses incurred within such scale by the local authority in connection with this Act shall be defrayed out of the county general purposes rate in counties (excluding police burghs) and the burgh general or police assessment in burghs, but shall not be reckoned in any calculation as to the statutory limit of such assessment.

(5) If any returning officer, presiding officer, clerk or officer of the local authority is guilty of any wilful act or omission in contravention of any of the provisions of this Act, or of any of the rules made by the Secretary for Scotland under this Act, he shall on summary conviction, in cases where no penalty is otherwise provided, be liable to a penalty not exceeding ten pounds for the first and twenty pounds for every succeeding offence.

(6) Every person who forges or procures the forgery of any signature to a requisition, or alters or defaces a requisition, or delivers to the clerk to the local authority any requisition knowing it to contain signatures which have been forged, or to have been altered or defaced in any way, shall be guilty of an offence, and shall be liable on summary conviction to a penalty not exceeding ten pounds, or, alternatively, to imprisonment for a term not exceeding three months with or without hard labour.

6. As from the passing of this Act, and until the first day of June nineteen hundred and twenty, it shall not be competent for a licensing court to order any structural alterations of licensed premises under section forty-two, subsection (3), of the Licensing (Scotland) Act, 1903.

7. Notwithstanding anything contained in the Licensing (Scotland) Act, 1903, the licensing court shall insert in all certificates granted from or after the twenty-eighth day of May nineteen hundred and fourteen the hour of ten o'clock in the

Structural alterations.

Later hour of opening.

morning in lieu of the hour of eight of the clock in the morning, and the forms of certificate contained in the Sixth Schedule to the said Act shall be construed accordingly: Provided that, where sale of commodities other than exciseable liquors is otherwise lawful, such commodities may be sold before such hour, and provided further that exciseable liquors may be despatched before such hour in fulfilment of orders received as prescribed by section sixty-three of the Licensing (Scotland) Act, 1903, and that section fifty-six of that Act shall apply to this Act.

Amendment
of law relating
to clubs.

8.—(1) Section seventy-eight, subsection (1), of the Licensing (Scotland) Act, 1903 (hereinafter in this section referred to as “the Act of 1903”), shall be amended (a) by substituting the words “and the names and addresses of the members” for the words “and the names of the members”; (b) by substituting the words “two members either of the licensing court “or of the court of appeal for the county within which such premises are situate, or one member of each of such courts “not being the same member, or, where such premises are “situate within a burgh, either by two justices of the peace “who for the time being are members of the court of appeal “from the burgh licensing court or by two magistrates of the “burgh, or by one justice, as aforesaid, and one magistrate,” for the words “two justices of the peace for the county within “which such premises are situate, or, where such premises are “situate within a burgh, either by two justices of the peace, “as aforesaid, or by two magistrates of the burgh, or by one “justice and one magistrate”; and (c) by adding the words “(1) any such justice of the peace or magistrate may, within “ten days from the date on which he signed the certificate, “withdraw his name from the certificate granted by him; “and (2),” after the words “Provided that.”

(2) Section seventy-nine, subsection (2), of the Act of 1903 shall be amended by including amongst those persons who may lodge objections to the grant or renewal of the certificate of registration the procurator fiscal and any person, or the agent of any person, owning or occupying property in the neighbourhood of the club, and by substituting the word “twenty-one” for the word “ten.”

(3) Section seventy-nine, subsection (4), of the Act of 1903 shall have effect as if the power conferred thereby on the sheriff (to award expenses against the unsuccessful party where objection has been taken to the grant or renewal of a certificate) included the like power where a summary complaint has been lodged.

(4) Any person or council competent under the Act of 1903 to lodge objections to the grant or renewal of a certificate of registration may, within twenty-one days of the receipt of the notice of application for the grant or renewal of a certificate, lodge with the registrar objections to such grant or renewal of the certificate on one or more of the following grounds, and that in addition to the grounds specified in section eighty-one of the Act of 1903:—

(a) That the premises are, or the situation thereof is, not suitable or convenient for the purpose of a club; or

that there is a drinking-bar or other part of the premises mainly or exclusively used for the consumption of exciseable liquors ; or

- (b) That the club is to be used mainly as a drinking club ; or
- (c) That the owner of the premises, when the same are not owned by the club or the immediate lessor of the premises, or the officials and committee of management, or governing body, or the manager, or a servant employed in or by the club have, or has, or will have, a personal interest in the purchase by the club or in the sale in the club of exciseable liquors, or in the profits arising therefrom ; or
- (d) That persons are habitually admitted or supplied as members without an interval of at least two weeks between their nomination and election as ordinary members or for a subscription of a merely nominal amount ; or
- (e) That the officials and committee of management or governing body or the members are persons of bad character or who follow no lawful occupation and have no lawful means of subsistence ; or
- (f) That the club has been or will be used as the resort of criminals or persons of bad character ; or
- (g) That men or women of bad fame assemble in or frequent the club ; or
- (h) That exciseable liquors are sold or supplied for consumption on or off the premises between the hours of two in the morning and ten in the morning.

(5) Section eighty-nine of the Act of 1903 shall be read as if the words “ an application with the accompanying documents “ specified in section seventy-eight, subsection (1), of the Act “ of 1903, any one of ” were substituted for the words “ an application for registration.”

(6) This section shall take effect as from the passing of this Act.

9.—(1) Section five, subsection (9) of the Licensing (Scotland) Act, 1903, shall be amended by the insertion at the end thereof of the words “ provided that in the absence of a quorum the “ chairman of the court or, in his absence, the clerk, may call a “ further meeting in lieu of the meeting not held.”

Amend-
ments of
3 Edw. 7. c. 25.
ss 5. 16. and 31.

(2) Notwithstanding anything contained in section sixteen of the Licensing (Scotland) Act, 1903, it shall be lawful for the licensing court and the licensing appeal court, in any case where there are more than one application for a certificate for the same premises, to hear and consider the said applications together.

(3) Section thirty-one, subsection (2), of the Licensing (Scotland) Act, 1903, shall be amended by substituting the words “ until the twenty-eighth day of May or the twenty-eighth day of November following, as the case may be,” for the words “ until the next general half-yearly meeting of the licensing court.”

(4) This section shall take effect as from the passing of this Act.

Sale of excise-
able liquors
in theatres.

10.—(1) Exciseable liquors may be supplied or sold in a theatre or other place of public entertainment, whether erected before or after the commencement of the Licensing (Scotland) Act, 1903, only on the days on which, and during the hours within which, exciseable liquors may be supplied or sold in public-houses within the burgh or county or county licensing district, as the case may be, in which said theatre or other place of public entertainment is situate, and at no other time :

Provided that nothing in this section contained shall authorise any supply or sale of exciseable liquors which would otherwise be illegal.

(2) This section shall take effect as from the passing of this Act.

Sales on order
of officials.

11.—(1) Section fifty-five of the Licensing (Scotland) Act, 1903, shall be amended by inserting after "officer of police," the words "including any constable in charge of any police station," and after "medical official" the words "or in case of sickness, accident, or emergency by a qualified medical practitioner."

(2) This section shall take effect as from the passing of this Act.

Power to close
certificate.l
premises in
case of riot.

12.—(1) Where any riot or tumult happens, or is expected to happen, the sheriff may order every holder of a certificate for the sale by retail of exciseable liquors in or near the place where the riot or tumult happens, or is expected to happen, to close his premises during such time as the order shall require.

(2) If any person keeps open his premises for the sale of exciseable liquor during any time at which in pursuance of this section they are ordered to be closed, he shall be liable in respect of each offence to a penalty not exceeding fifty pounds.

(3) This section shall take effect as from the passing of this Act.

Drunken per-
sons entering
public-house.
3 Edw. 7. c. 25.

13.—(1) Any person who is in a state of intoxication, and found attempting to enter any public-house, shall be thereby guilty of an offence, and shall be subject to the same powers and procedure and penalty as provided in the first paragraph of subsection (1) of section seventy of the Licensing (Scotland) Act, 1903.

(2) This section shall take effect as from the passing of this Act.

Termination
of existing
leases, &c.

14. Where any certificate is not renewed in virtue of the provisions of this Act, or of any resolution carried in virtue of said provisions, any lease existing at the first day of June one thousand nine hundred and twelve of the premises referred to and licensed in said certificate, not being a long lease within the meaning of the Registration of Leases (Scotland) Act, 1857, and Acts amending the same, to the holder thereof, or any contract by the said holder existing at the said date for the purchase of exciseable liquors, or for service in connection with the sale thereof, shall cease and determine on a non-renewal of

20 & 21 Vict.
c. 26.

the certificate as aforesaid, as if the date when the certificate was not renewed had been inserted in the lease or contract as the date of its natural termination :

Provided that this section shall not apply in the case of any lease or contract in which there is any provision altering the conditions in the event of the licence not being renewed or any provision enabling the lessee to cause such lease or contract to cease and determine at any time between the first day of June, nineteen hundred and twelve, and the coming into operation of this Act.

15. The several words and expressions used in this Act shall, unless otherwise provided or unless there be something in the subject or context repugnant to such construction, have the same respective meanings as in the Licensing (Scotland) Act, 1903 :

Definitions.

Provided that in this Act—

“Area” means—

(a) in the case of a burgh divided into wards, the population of which burgh within the police boundaries thereof, as ascertained in the year nineteen hundred and nineteen for the purposes of this Act in manner approved by the Secretary for Scotland, is not less than twenty-five thousand, any ward of such burgh unless, where the population of any ward of such burgh as so ascertained is less than four thousand, the town council, by resolution passed on or before the first day of January nineteen hundred and twenty, determine that such ward shall for the purposes of this Act be combined with a ward contiguous thereto ; and

(b) In the case of other burghs, the whole burgh ; and

(c) in the case of a county, the parish, as defined in the Local Government (Scotland) Act, 1894, ^{57 & 58 Vict. c. 58.} excluding any burgh or part of a burgh therein, and where a parish is situated within two counties, the portion in each county shall, for the purposes of this Act, be deemed to be a separate parish :

“Burgh” means a royal, parliamentary, or police burgh :

“County” means a county exclusive of any burgh or part of a burgh comprised therein :

“Certificate” means any certificate for the sale by retail of exciseable liquors granted in terms of or under the provisions of the Licensing (Scotland) Act, 1903 : Provided that, for the period during which a no-licence resolution is in force in any area, no dealer’s licence for the sale of exciseable liquor by wholesale shall be granted therein by the Commissioners of Customs and Excise, or by any officer of Customs and Excise, except to brewers of beer for sale, distillers, rectifiers, or compounders of spirits, makers of sweets,

for wholesale dealers in spirits, wine, beer, or sweets for premises for which similar licences have been taken out for twelve months before the date of the poll, including any reconstruction of, addition to, or extension of such premises on the same or an adjoining site, and any premises in substitution for such premises from which the holder of the licence removes without the production of a certificate authorising such sale from the licensing court; which certificate shall be applied for, granted, confirmed, transferred, and renewed in the same manner as though it were a certificate authorising such sale by retail; and provided further that, subject to the variation of conditions prescribed by this Act, the form of certificate for an inn and hotel or for a restaurant granted under section three of this Act shall be, respectively, the first and second form prescribed by the Sixth Schedule of the Licensing (Scotland) Act, 1903 :

“Elector” means, in the case of—

(a) a burgh, any person registered as entitled to vote at an election of town councillors for that burgh, and when used in relation to any area in a burgh means a person so registered as entitled to vote at an election for that area; and in the case of—

(b) a parish (excluding any burgh or part of a burgh therein), any person registered as entitled to vote at an election of parish councillors for that parish, excluding as aforesaid : Provided that the supplementary register made up in the year nineteen hundred and nineteen under section twenty-eight of the Local Government (Scotland) Act, 1889, shall continue in operation for the purposes of a poll under this Act in the year nineteen hundred and twenty, and provided further that, for the purposes of a requisition in the year of a triennial election of county councillors before the register of parish council electors is made up, “elector” means any ratepayer within the parish, excluding as aforesaid :

The expression “grant” when used in relation to a certificate includes the grant of a certificate by way of renewal or transfer :

“Local authority” means, in the case of—

(a) a burgh, the town council thereof ; and

(b) a county, the county council thereof :

“No-change resolution” means a resolution that the powers and discretion of the licensing court in regard to the grant of certificates or otherwise shall remain unchanged, and in section two as applied to a further poll in any area where a limiting resolution is in force means a continuance resolution.

16.—(1) This Act may be cited as the Temperance (Scotland) Act, 1913, and shall apply to Scotland only. Short title and citation.

(2) This Act and the Licensing (Scotland) Act, 1903, may be cited together as the Licensing (Scotland) Acts, 1903 to 1913.

SCHEDULES.

SCHEDULE I.

Section 5.

FORM OF REQUISITION FOR A POLL.

We, the subscribers hereto, being electors in [*here insert area for which the poll is demanded*] do hereby demand a poll under the terms of the Temperance (Scotland) Act, 1913.

Signature.	Name in full.	Address.	Number on Register.

SCHEDULE II.

Section 5

FORM OF BALLOT PAPER.

(Ballot Paper for [*here insert name of area*].)

Counterfoil No.	1	NO-CHANGE RESOLUTION (means that the powers and discretion of the licensing court shall remain unchanged).	
	2	LIMITING RESOLUTION (means that the number of certificates for the sale of exciseable liquors shall be reduced by one quarter <i>in accordance with the provisions of the Act</i>).	
	3	NO-LICENCE RESOLUTION (means that no certificate for the sale of exciseable liquors shall be granted except for inns and hotels or restaurants in special cases in accordance with the provisions of the Act).	

Indicate your vote by making a **X** in the right-hand space opposite the resolution for which you vote. You have one vote, and may vote for one resolution only. If you vote for the no-licence resolution and that resolution is not carried your vote will then be counted as a vote in favour of the limiting resolution.